



CHAPTER 5

An Act to enable effect to be given to an international agreement for the establishment and operation of an International Finance Corporation, and for purposes connected therewith. [27th July, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. In this Act "the Agreement" means any agreement which may be signed and accepted on behalf of Her Majesty's Government in the United Kingdom in pursuance of Articles approved on the eleventh day of April, nineteen hundred and fifty-five by the executive directors of the International Bank for Reconstruction and Development and providing for the establishment and operation of an international body to be called the International Finance Corporation (copies of which Articles, and of an explanatory memorandum approved as aforesaid, were laid before Parliament by command of Her Majesty on the sixteenth day of June, nineteen hundred and fifty-five); and "the Corporation" means the International Finance Corporation established by the Agreement. The Agreement and the Corporation.

2.—(1) There shall be paid out of the Consolidated Fund of Financial the United Kingdom all sums required for the purpose of making provisions. payments on behalf of Her Majesty's said Government under paragraph (a) of section 3 of Article II of the Agreement (which provides for the subscription of shares of stock of the Corporation by the original members).

2 & 3 Geo. 6.
c. 117.

(2) The Treasury may, for the purpose of providing any sums to be paid out of the Consolidated Fund under the foregoing subsection, or any part of such sums, or of repaying to that Fund all or any part of any sums so paid, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939; and any securities created and issued for that purpose shall be deemed for all purposes to have been created and issued under that Act.

(3) Any sums received by Her Majesty's said Government from the Corporation in pursuance of the Agreement shall be paid into the Exchequer of the United Kingdom; and the sums so paid into the Exchequer shall be issued out of the Consolidated Fund of the United Kingdom at such times as the Treasury may direct, and shall be applied by the Treasury as follows, that is to say,—

- (a) so much of those sums as represents capital shall be applied in redeeming or paying off debt of such description as the Treasury think fit;
- (b) so much of those sums as represents dividends shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

Other
matters.
14 Geo. 6.
c. 14.

3.—(1) Without prejudice to the powers conferred by section one of the International Organisations (Immunities and Privileges) Act, 1950, Her Majesty may by Order in Council make such provision as She may consider reasonably necessary for carrying into effect any of the provisions of the Agreement relating to the status, immunities and privileges of the Corporation and its governors, directors, alternates, officers and employees.

(2) An Order in Council under this section may be made so as to extend to any part of Her Majesty's dominions (other than Canada, Australia, New Zealand, the Union of South Africa, Pakistan and Ceylon, and any territory administered by the Government of any of those countries) and, to the extent that Her Majesty has jurisdiction therein, to any other territory for whose foreign relations Her Government in the United Kingdom is responsible :

Provided that if, whether before or after the passing of this Act, effect is given by or under the law of any such part of Her Majesty's dominions or other territory to the said provisions of the Agreement, no Order in Council made under this section shall extend to that part of Her Majesty's dominions or other territory in respect of any period for which effect is so given to the said provisions.

(3) Any Order in Council under this section may be varied or revoked by a subsequent Order in Council.

(4) No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft thereof has been laid before Parliament and approved by Resolution of each House of Parliament.

4. This Act may be cited as the International Finance Corporation Act, 1955.

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